

Mangal Dev Prasad Arya v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 29 January 2026 · Writ-C No. 3019 of 2026 · **Petition dismissed; liberty to approach Executive Engineer under clause 6.5.**

HEADNOTE

Writ against an electricity-department notice dismissed for alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Petitioner given liberty to approach the Executive Engineer within one week; the authority is to hear and decide in accordance with law within two weeks of filing.

FACTUAL SUMMARY

Mangal Dev Prasad Arya invoked Article 226 of the Constitution before the Allahabad High Court, being aggrieved by a notice dated 4 January 2026 issued by the Electricity Department. The State of Uttar Pradesh was the first respondent; respondents 2 and 3 were the electricity authorities, appearing through Mr. Chetan Chatterjee. After hearing counsel for the petitioner, Standing Counsel, and those respondents, the Division Bench took up maintainability of the writ at the threshold.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative-remedy-clause-6.5

HOLDING

A writ petition challenging an electricity-department notice is not entertained where an alternative statutory remedy lies under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petition is dismissed with liberty to approach the Executive Engineer; if the application is filed within one week, the authority shall grant a hearing and pass an order in accordance with law within two weeks of filing. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND MERITS OF THE ELECTRICITY NOTICE DATED 4 JANUARY 2026